KINGROSS INVESTMENTS (PRIVATE) LIMITED
and
ACQUIFER INVESTMENTS (PRIVATE) LIMITED
and
ROSEPHARM INVESTMENTS (PRIVATE) LIMITED
versus
TELMAP MINING SYNDICATE
and
TIMOTHY MASVIBA

HIGH COURT OF ZIMBABWE
MHURI J
HARARE, 30 January and 2 February 2026

Urgent Chamber Application

T Madzwamuse, for applicants
A Nyamukondiwa for respondents

MHURI J: This is an urgent chamber application for rei vindicatio and prohibitory relief. The applicant seeks an order in the following terms:

> "1. The application for *rei vindicatio* and prohibitory order be and is hereby granted.
> 2. The Respondents be and are hereby ordered to surrender possession and control of and to return to the Applicants 41 mining claims in Norton owned by the Applicants commonly known as Ascot Mine upon service of this order failing which the Sheriff of Zimbabwe or his lawful deputy be and is hereby authorized to take all necessary steps to recover the said mining claims from the Respondents or any person whomsoever is in possession thereof and return same to the possession and control of the Applicants or their lawful representatives.
> 3. The Respondents and any person claiming any right through them be and are hereby barred and prohibited from carrying on any mining operations at the Applicants' mining claims described in paragraph (2) above without Applicants' consent.
> 4. The Respondents and any person claiming any right through them be and are hereby ordered to vacate the Applicants' mining claims per paragraph (2) above within 24 hours upon service of this order upon the Respondents.
> 5. The Respondents be and are hereby ordered to remove all its equipment, plant, and machinery from the Applicants' mining claim per paragraph (2) above within three months calculated from the date of lapsing of the tribute agreement being the 17th of January 2026.
> 6. The Respondents shall pay costs of suit on attorney client scale.''

The brief background facts to the application is that on 15 January 2023, the applicants and the first respondent entered into a Tribute Agreement which would run for a period of three (3) years and lapse on 17 January 2026. Upon the lapsing of the Tribute Agreement by effluxion of time, the respondents were obliged to cease all mining operations at Ascot Mine and facilitate the handover and takeover process including the removal of their

equipment, plant and machinery from the applicants' mining claims. On 17 January 2026, the Applicants through their representatives approached Ascot Mine for purposes of deploying their own security officers at the mine whilst facilitating the handover and takeover process of the mining claims with the Respondents. Upon arrival at Ascot Mine, the Applicants' representatives were denied access to their mining claims resulting in the applicants reporting the matter to the Zimbabwe Republic Police at Norton Police Station. The respondents are currently conducting mining activities in this mining area. This resulted in the applicants making this urgent chamber application for *rei vindication* and prohibitory relief against the respondents.

The applicant has raised a preliminary point that there is no resolution authorising second respondent to represent the first respondent. Respondents have equally raised preliminary points to wit;

1. The application is not urgent.

2. The application is fatally defective.

3. Lis pendens.

4. Dirty hands of Hendrick Bezuidenhout.

I will first consider the preliminary point raised by the applicants. It was applicants' submission that the first respondent is clothed with legal personality in terms of r11(1) of the High Court Rules, 2021 which provides that a syndicate is an association with capacity to sue and be sued. The syndicate is an entity therefore anyone who intends to act on its behalf has to be duly authorised to do so through a resolution. Mr *Madzwamuse* contended that without a resolution there is no opposition by first respondents as such the matter should proceed against the second respondent only.

Responding to the applicants' preliminary point the respondents submitted that r11(1) does not give a syndicate legal personality, it only gives a syndicate *locus standi*. Mr *Nyamukondiwa* argued that one cannot separate a syndicate from its members, hence if you intend to sue the members of a syndicate you cite the syndicate. It was the respondents' contention that since a mining syndicate is not a legal person and where one is suing members of the syndicate there is no requirement for a resolution. To substantiate their submission reliance was made on the cases of *Kunaka & Anor* v *Secretary of Mines and Mining Development* HH297/25 and *Mbereko & Ors* v *Minning Commissioner & Ors* HH245/18.The respondents further argued that since Mr Masviba has positively sworn to the

facts and has been sued personally the requirements of r11 have been met .It is not necessary that each and every member grants an individual the authority to act on behalf of the syndicate. They prayed for the dismissal of the preliminary point raised by the applicant.

The Law and Analysis

The position of the common law principle that a syndicate could not sue or be sued in its name has been altered by r 11of High Court Rules. The rule provides:

> "11. (1) In this rule—
> "associate" in relation to—
> (a) a trust, means a trustee;
> (b) an association other than a trust, means a member of the association;
> "association" means any unincorporated body of persons, and includes a partnership, a syndicate, a club or any other association of persons;
> "firm" means a business including a business carried on by a body corporate, carried on by the sole proprietor under a name other than his or her own;
> "plaintiff" and "defendant" include applicant and respondent;
> "sue" and "sued" are used in relation to actions and applications;
> "summons" includes a combined summons.
> (2) A firm or an association may sue or be sued in its name.
> (3) A plaintiff suing a firm or association needs not allege the names of the proprietor or associates. If he or she does, any error of omission or inclusion shall not afford a defence to the association.
> (4) Subrule (3) shall apply with the necessary changes to a plaintiff suing a firm."

In the same vein s 2 of the Companies and Other Business Entities Act [*Chapter 24:31*] defines a "syndicate" as an association of individuals, companies or other business entities, or other bodies corporate or unincorporated, formed for the purpose of conducting and carrying out some particular business transaction.

In *OS Family Trust* v *Exodus & Company (Pvt) Ltd & 2 Ors* HH253/25 at p 6 the Court pronounced on the position of a syndicate as follows:

> "It only stands to reason that an entity which can sue or be sued means it is a legal persona with the capacity to run affairs in its own name and can enter into agreements."

In the *Madzivire & Ors* v *Zvarivadza & Ors* 2006 (1) ZLR 514 (S) the court held that a company is a separate legal person from its directors and cannot be represented in a legal dispute by a person who is not authorized to do so, the court stated:

> "It is clear from the above that a company, being a separate legal person from its directors, cannot be represented in a legal suit by a person who has not been authorized to do so. This is a well-established legal principle, which the courts cannot ignore. It does not depend on the pleadings by either party. The fact that the first appellant is the managing director of the fourth appellant does not clothe him with the authority to sue on behalf of the company in the absence of any resolution authorizing him to do so."

The Supreme Court stated that a party can show they have been authorized to represent the organization when it has been challenged. In *Dube* v *Premier Service Medical Aid & Anor* SC 73/19 in para 38, it was held that:

> "The above remarks are clear and unequivocal. A person who represents a legal entity, when challenged, must show that he is duly authorized to represent the entity. His mere claim that by virtue of his position he holds in such an entity he is duly authorized to represent the entity is not sufficient. He must produce a resolution of the board of that entity which confirms that the board is indeed aware of the proceedings and that it has given such a person the authority to act in the stead of the entity. I stress that the need to produce such authority is only necessary in those cases where the authority of the deponent is put in issue. This represents the current status of the law in this country." (underlining my own)

The case of *Beach Consultancy (Private) Limited* v *Obert Makonya & Anor* HH 696/21 puts it succinctly that the reason for insistence on the company being aware of the proceedings is to confirm that it is indeed the company that has taken the decision to participate in the court case and that it is not an unauthorized person who is dragging it to court without its knowledge. These remarks apply with equal force in this case.

In *casu,* the Respondent's Notice of Opposition reads:

> "I, TIMOTHY MASVIBA, being a male adult, do hereby make oath and swear to the following, that: 1. I am the 2nd Respondent in this matter and I am also a director of the 1st Respondent. I am duly authorized to depose to this Affidavit on behalf of the 1st Respondent by virtue being a member of the 1st Respondent."

It is my finding that a mining syndicate has *locus* and legal personality separate from its members. It can therefore sue and be sued. This means any individual purporting to represent it needs a mandate to do so. It is a requirement that a litigant must produce proof of authorization when challenged. In *casu,* respondents went on to oppose that the first respondent has legal personality instead of producing proof that second respondent has been authorised to represent the first respondent. Without a resolution/mandate or power of attorney second respondent cannot legally bind the other members of the syndicate or represent the syndicate's interests. In the circumstances I find the preliminary point raised by the applicant with merit. Resultantly, the application proceeds unopposed as regards first respondent. I will therefore proceed to determine the application against the second respondent.

I will now delve into the preliminary points as raised by the second respondent.

The second respondent submitted that the application is not urgent because the Tribute Agreement relied on by the applicant was cancelled by the parties by consent in October 2024.The occupation of the mining location is now in the hands of Telmap Private

Limited through a Rent to Buy Agreement. Mr *Nyamukondiwa* argued that the fact that applicant relies on a Tribute Agreement that was terminated means the matter is not urgent.

It was also respondent's preliminary point that the application is fatally defective since the applicant seeks the Court to grant eviction on a final basis. This is improper in law because in an urgent chamber application the Court is asked to maintain the *status quo* pending final determination. Mr *Nyamukondiw*a submitted that applicant was supposed to first seek an interim relief then on the return date final relief maybe granted. Substantiating these submissions he relied on the cases of *Chivanga* v *Mahoso* HH41/18 and *Mabhena* v *Mbangani* HCB57/18.

The third preliminary point raised by the second respondent is that the matter is *lis pendens* because the three applicants filed a counter application for rei vindication to the application for interdict at the Norton Magistrates Court. That counter application is still pending before the Magistrates Court, and the applicants have filed an appeal under HCH6541/25 against the Magistrate's order. In the Appeal the applicant's first ground of appeal relates to the Court aquo's failure to consider and determine the counter application for *rei vindicatio.*

Lastly, the respondents argued that Hendrick has dirty hands. Respondent submitted that Mr Hendrick is a South African citizen who is illegally in Zimbabwe since he does not possess a work permit, which conduct flouts s21 of the Immigration Act 1998. In the circumstances, applicants cannot be heard before Hendrick purges his contempt of violating Zimbabwean laws. With those preliminary points the second respondent prayed that the urgent chamber application be struck off the roll with costs.

Responding to the second respondent's preliminary points the applicant argued that it is incumbent upon the respondents to show basis for submitting that the matter is not urgent. Mr *Madzwamuse* argued that at the Magistrates Court the first respondents were arguing that the Tribute Agreement was extant and will lapse in 2026.The Magistrate then ruled that Rent to Buy Agreement was between applicants and a different entity therefore the court granted an interdict on the basis of the Tribute Agreement which would lapse in 2026 January.

On the second preliminary point, it was applicant's submission that the application is not defective because in many occasions the Courts have granted final orders through urgent chamber applications as evidenced in the case of *Nhachi* v *Mosswoood Investments Pvt Limited & Anor* HH587/22 and Minerals Identity (Pvt) Ltd v Chenai Munyoro & Ors HH 167/24. Applicant submitted that the only requirement for the granting of a final order on an

urgent basis is for the Court to be satisfied on a balance of probability that the applicants are entitled to the relief sought.

Addressing the preliminary point of *lis pendens* applicants argued that the court application at the Magistrates Court relates nowhere to the Tribute Agreement between the parties. It was based on a Rent to Buy Agreement and applicants' cause of action was not there. It was applicants' further submission that the cause of action in the Appeals Court is the Rent to Buy Agreement not the Tribute Agreement which was cancelled and is of no force.

On the fourth preliminary point Mr *Madzwamuse* contended that there is nothing amiss in a company having a foreign director. It was applicants' submission that Hendrick is an investor in Zimbabwe and does not enter Zimbabwe for purposes of exercising his directorship duties only. Applicants' prayer was that all the preliminary points be dismissed.

The Law and Analysis

Whether or not the matter is urgent?

The issue which falls for determination and can dispose of the matter without being detained by unnecessary splitting of hairs at this juncture is whether or not the matter is urgent.

The often-cited case in determining what constitutes urgency is that of *Kuvarega* v *Registrar General & Anor* 1998(1) ZLR 188 (HC). The words of CHATIKOBO J at p 193 bear useful repetition for clarity. The learned Judge said:-

> "In the present case, the applicant was advised by the first respondent on 13 February, 1998 that people would not be barred from putting on the T-shirts complained of. It was not until 20 February, 1998 that this application was launched. The certificate of urgency does not explain why no action was taken until the very last working day before the election began. No explanation was given about the delay. What constitutes urgency is not only the imminent arrival of the day of reckoning; a matter is urgent, if at the time the need to act arises, the matter cannot wait. Urgency which stems from a deliberate or careless abstention from action until the deadline draws near is not the type of urgency contemplated by the rules. It necessarily follows that the certificate of urgency or the supporting affidavit must always contain an explanation of the non-timeous action if there has been any delay. *In casu,* if I had formed the view that it was desirable to postpone the election I may nevertheless, have been dissuaded from granting such an order because by the time the parties appeared before me to argue the matter, the election was already under way. Those who are diligent will take heed. Forewarned is forearmed".

The decision as to whether an application is urgent, is a matter in the discretion of the court. GILLESPIE J said in *General Transport & Engineering (Pvt) Ltd & Ors* v *Zimbabwe Banking Corporation Ltd* 1998 (2) ZLR 301 (HC) that the extension of protection as a matter of urgency is relief available from this court as a matter of discretion and that this preferential

treatment is only extended where good cause can be shown for treating one litigant differently from most litigants behoves me to exercise my discretion against the applicant.

It has been held in various cases that a matter is urgent if, at the time the need to act arises, the matter cannot wait. In *Econet Wireless (Pvt) Ltd* v *Trustco Mobile (Pty) Ltd and Anor* 2013 (2) ZLR 309 (S), it was held at 320G as follows:

> "The position is now settled that what constitutes urgency is not only the imminent arrival of the day of reckoning but also if, at the time the need to act arises, the matter cannot wait. Urgency which stems from a deliberate or careless abstention from action until the deadline draws near is not the type of urgency contemplated by the Rules."

The applicants submitted that the cause of action arose sometime around January 2026 when his security personnel wanted to occupy the mining area for a proper handover-takeover. He submitted that the application is also based on the Tribute Agreement which was set to expire on 17 January 2026.These submissions are inconsistent with what is on record to the extent that the Tribute Agreement was overtaken by the Rent to Buy Agreement, which agreement was also relied on in the matter at the Magistrates Court resulting in the appeal which is before this Court. It is therefore my view that the cause of action arose sometime in October 2025 and not sometime in January 2026 as submitted by the applicant. This matter does not warrant jumping the queue to be heard on an urgent basis. In the circumstances it is my finding that the application is not urgent and should follow the normal roll of court applications.

Whether or not the application is fatally defective?

It has been held in various case law that an applicant cannot seek a final order through an urgent chamber application. This position was settled in the case of *Cawood* v *Madzingira & Anor* HMA12/17, wherein MAFUSIRE J held as follows:

> "It has been stated time and again that the object of an urgent chamber application is to get nterim protection. Because of the urgency that may be manifest on the papers, the application is allowed to jump the queue of cases awaiting determination at the courts."

CHATIKOBO J in *Kuvarega* v *Registrar General & Ors* 1998 [1] ZLR 188 [H] at p 193A – B held,

> "The practice of seeking interim relief which is exactly the same as the substantive relief sued for which has the same effect defeats the whole object of interim protection. In effect a litigant who seeks relief in this manner obtains final relief without proving his case. That is so because interim relief is normally granted on the mere showing of a prima facie case. If the interim relief is identical to the main relief and has the same substantive effect, it means the applicant is granted the main relief on proof merely of a *prima facie* case. This to my mind is undesirable where, as here the applicant will have no interest in the outcome of the case on the return day."

In *Chiwenga* v *Mubaiwa* SC 86/20 at p 13 the court held that:

> *"*The purpose of a final order is different from that of a provisional order in that a final order is conclusive and definitive of the dispute. It finally settles the issues and has no return date. Once a final order is given the court issuing the order becomes functus officio and it cannot revisit the same issues at a later date."

In Nhende v *Zigora & Anor* SC102/22 the Supreme Court noted as follows:

> "I have had to give a detailed account of the procedure for provisional relief because there appears to be a signal failure or lack of appreciation at the moment at the High Court that when approached on an urgent basis, except where spoliatory relief is sought in which case the court grants final relief, the court is required to issue interim or provisional relief in the form of a provisional order. Given that, by its very nature, an urgent application requires the applicant to establish a prima facie case for the grant of interim relief, the jurisdiction of the court to grant final relief is not triggered."

In *casu*, the applicant seeks a final order for *rei vindication* and prohibitory relief. The relief being sought in casu is final in nature and in my view improper in the circumstances. The cases relied upon by applicants are distinguishable from the present one. In the case of *Moses Nhachi* (supra) the relief sought was stay of execution pending application for rescission. By its very nature stay of execution is an interim relief (interdict) where a litigant is asking the court to preserve the status quo pending determination of the rights of the parties.

In the *Chikwinya* case, though final interdict was granted, the Learned Judge had this to say before granting the relief, 'The courts generally detest issuing a final order through an urgent application, a final order in this case is however, warranted in that the respondents have no arguable case at all as their opposition virtually amounts to an admission.'' This was an exception to the general rule. Another exception is in Spoliation applications which are sui generis in which final relief can be obtained on an urgent basis.

Such is not the case in *casu*. Applicants are seeking rei vindication on an urgent basis. It is noted that there are material disputes of facts in this case which may need proper ventilation. In the result I find that this point in limine was well taken and I uphold it.

Whether or not the matter is *lis pendens*?

The requirements for *lis pendens* were explained in the case of *CBZ Bank Ltd* v *Nyamuyaruka* HH 286/16 as follows:

> "Four requirements have to be satisfied, that is,
> -Pending litigation
> -Between the same parties or their privies
> -Based on the same cause of action
> -In respect of the same subject matter"

In *casu* both the application and the appeal are between the same parties, is in respect of the same mine claim Number 41 with the same cause of action. This is because the pending appeal cause of action was a counter application for *rei vindication* after the current respondents had made an application for interdict against the respondents. This appeal is still pending in this Court. The same goes for the counter application before the Magistrates Court. The matter is still pending as well. It is clear that the present application is *lis pendens*.

Whether or not Hendrick has dirty hands?

The urgent chamber application before me is for rei vindication and prohibitory relief. Hendricks is a Director in the applicant's business. I will therefore not detain myself with this point considering that I have upheld the first three preliminary points which go to the root of the application.

In the circumstances the points in limine raised by second respondent having been upheld, the application be and is hereby struck off with costs.

MHURI J……

Chinawa Attorneys Applicants Legal Practitioners
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